

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 09/02/2026 TIME: 9:00 A.M. and 9:01 A.M.

Welcome to Department 12. The Court's tentative rulings for the Law & Motion Calendar are below.

TO CONTEST THE RULING: Before 4:00 p.m. ON THE DAY PRIOR TO THE HEARING, YOU MUST NOTIFY:

- (1) The Court - by calling (408) 808-6856 and emailing Department12@scscourt.org
- (2) Opposing side - by phone or email that you plan to appear and contest the ruling.

The Court will not hear argument and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

****Please indicate the specific issue being contested when calling/emailing the Court and counsel****

IN-PERSON APPEARANCES: Department 12 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court strongly encourages in-person appearances for any **contested** law-and-motion matter. If appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not permitted absent exceptional circumstances. (Civil Local Rule 5.B.)

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 12 uses UDC as its remote platform.

The Court encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) "CourtCall" is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process may be found on the court's website
https://www.scscourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Please reserve your next hearing date using Court Schedule—an online scheduling tool on the Santa Clara County court website.

<https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) You must then file your motion papers no more than five court days after reserving the hearing date, or the date will be released to other cases.

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.) **Please Note:** Any proposed orders must be submitted with the Judicial Council Form EFS-020 Proposed Order (Cover Sheet). Please include the date, time, department and line number.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	23CV418929	Sophie Yeh v. Michael Bench et al.	MOTION TO SUMMARY JUDGMENT/ADJUDICATION Please Ctrl Click (or scroll down to) Line 1
LINE 2	25CV459519	Mathew Brenner et al v. Steve Wozniak, et al.	Off Calendar
LINE 3	25CV466769	Francisco Contreras Chaires v. General Motos LLC et al	MOTION FOR ATTORNEY'S FEES Please Ctrl Click (or scroll down to) Line 3
LINE 4	25CV467169	Wilkinson et al v. Ninh Tang, et al	MOTION TO SET ASIDE DISMISSAL Notice is proper. The Court has received no opposition from Defendant. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Good Cause Appearing, Plaintiff's motion is GRANTED. Plaintiff to prepare the final order, accompanied by the necessary Forms EFS-020, within 7 days of the date of the hearing.
LINE 5	25CV470868	Thomas Huang et al. v. Tuan Luong et. al.	MOTION: ADMISSIONS DEEM ADMITTED Notice is proper. The Court has received no opposition from Defendant Tuan Luong. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Good Cause Appearing, the motion is GRANTED. The truth of all specified facts in the Request for Admissions, Set One, 1-7 propounded by Plaintiff Thomas Huang on Defendant Tuan Luong on February 12, 2026, shall be deemed admitted. Plaintiff to prepare the final order, accompanied by the necessary Forms EFS-020, within 7 days of the date of the hearing.

**SUPERIOR COURT, STATE OF CALIFORNIA
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DATE: 09/02/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 6	25CV472413	Zededa Inc. v. Broadcom Inc. et al.	MOTION TO COMPEL Please Ctrl Click (or scroll down to) Line 6
LINE 7	25CV472884	Dominique Hersdorff v. Todd Carper et al.	DEMURRER Please Ctrl Click (or scroll down to) Line 7
LINE 8	25CV476583	Jason Adair v. Elisity, Inc.	MOTION TO COMPEL Please Ctrl Click (or scroll down to) Line 8
LINE 9	26CV487410	Deepak Jariwala v. FCA US LLC	MOTION TO ENFORCE CCP 871.26 Please Ctrl Click (or scroll down to) Line 9
LINE 10			
LINE 11			
LINE 12			

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Calendar Line 1

Case Name: *Sophie Yeh v. The Harker School, et al.*

Case No.: 23-CV-418929

Motion for Summary Judgment, or in the Alternative, Summary Adjudication to the Cross-Complaint of Cross-Complainant The Harker School by Cross-Defendant Commercial Tree Care

Factual and Procedural Background

This is a cross-action for fraud and related claims brought by cross-complainant The Harker School (“Harker”) against cross-defendant Commercial Tree Care (“CTC”).

According to the cross-complaint, on March 21, 2023, Sophie Yeh (“Yeh”) was a visiting student on Harker’s Upper School campus in San Jose. (Cross-Complaint at ¶ 1.) At approximately 1:30 p.m. on March 21st, a coastal redwood tree on the Upper School campus was uprooted and fell during a storm, its branches hitting and injuring Yeh, who was walking across the campus at the time. (Ibid.)

At the time of the incident, and for approximately 13 years prior to the incident, Harker retained CTC, an International Society of Arboriculture (“ISA”) certified arborist company, to provide tree care services to Harker’s campuses. (Cross-Complaint at ¶ 2.) CTC’s website states: “Our team of ISA certified arborists has extensive experience in assessing tree health and safety. With over 20 years of industry experience, they provide expert recommendations to maintain the vitality and safety of your trees.” (Id. at ¶ 4.) In addition, Harker staff met with CTC annually to walk the grounds of Harker’s campuses to identify any trees that may need to be serviced, pruned, removed or other care. (Id. at ¶ 5.)

Harker alleges CTC knowingly, intentionally, and falsely with deceit represented to Harker, through written and oral conversations and contracts and its website, its capabilities, its scope of work, and its assessment of trees on Harker’s campuses. (Cross-Complaint at ¶ 21.) CTC acted with an intent to deceive by making representations and promises related to their services and expertise, knowing they would not in fact provide those services to Harker. (Id. at ¶ 27.)

Harker also alleges CTC breached its duty and failed to perform obligations under the written and/or oral contracts, including but not limited to, failing to perform required assessments of the trees on Harker’s campuses, failing to communicate necessary recommendations pertaining to trees on the campuses, and failing to communicate issues identified with and observed in the trees on campus. (Cross-Complaint at ¶¶ 34, 38.)

On July 11, 2023, Yeh filed a complaint against Harker and other defendants alleging a single cause of action for negligence/premises liability.

On September 23, 2025, Harker filed the operative cross-complaint against CTC alleging causes of action for: (1) fraud; (2) breach of contract; (3) negligence; (4) equitable indemnity; (5) apportionment/contribution; and (6) Bus. & Prof. Code § 17200.

On November 13, 2025, CTC filed its answer to the cross-complaint setting forth a general denial and 43 affirmative defenses.

On November 20, 2025, Harker dismissed the sixth cause of action from the cross-complaint.

On June 22, 2026, CTC filed the motion presently before the court, a motion for summary judgment, or in the alternative, summary adjudication to the cross-complaint. Harker filed written opposition and evidentiary objections. CTC filed reply papers. Yeh filed a response taking no position on the motion.

Trial is scheduled for October 12, 2026.

Motion for Summary Judgment, or in the Alternative, Summary Adjudication

CTC argues there is no triable issue of material fact as to the claims in the cross-complaint and thus judgment should be entered as a matter of law. In the alternative, CTC moves for summary adjudication of the fourth and fifth causes of action and the first, second, fifteenth, and seventeenth affirmative defenses.

Motion for Summary Adjudication

As a procedural matter, the court notes that cross-defendant CTC's alternative motion for summary adjudication does not comply with the rules of court.

"The supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts shall be followed by a reference to the supporting evidence." (Code Civ. Proc., § 437c, subd. (b)(1).)

The separate statement filed in support of the motion must be in a two-column format. (Cal. Rules of Court, rule 3.1350(d)(3).) "The statement must state in numerical sequence the undisputed material facts in the first column followed by the evidence that establishes those undisputed facts in the same column. Citation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers." (Ibid.)

"The requirement of a separate statement from the moving party and a responding statement from the party opposing summary judgment serves two functions: to give the parties notice of the material facts at issue in the motion and to permit the trial court to focus on whether those facts are truly undisputed." (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197, 1210.) As one court explained:

"Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for SAI and summary judgment to determine quickly and efficiently whether material facts are disputed."

(*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 335.)

"If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. **If**

summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Court, rule 3.1350(b), emphasis added.)

“ ‘ “Both the court and the opposing party are entitled to have all the facts upon which the moving party bases its motion plainly set forth *in the separate statement.*” ’ [Citation.] And if the separate statement does not contain all material facts on which the motion is based, the moving party has failed to meet its initial burden of production and is ‘not entitled to summary adjudication as a matter of law.’ [Citations.]” (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1297.)

According to the notice of motion, cross-defendant CTC requests summary adjudication of the fourth and fifth causes of action and the first, second, fifteenth, and seventeenth affirmative defenses. The separate statement however, filed in support of the motion, does not refer to the motion for summary adjudication as to these causes of action and affirmative defenses. Thus, it is unclear which material facts and supporting evidence are connected to the alternative motion for summary adjudication. And it is not the job of the court to speculate or guess which material facts address the motion for summary adjudication. (See *North Coast Business Park v. Nielsen Construction Co.* (1993) 17 Cal.App.4th 22, 31 [“[W]hen the ‘fact’ is not mentioned in the separate statement, it is irrelevant that such fact might be buried in the mound of paperwork filed with the court, because the statutory purposes are not furthered by unhighlighted facts.”]; see also *Albrechtsen v. Bd. of Regents of Univ. of Wisconsin Sys.* (2002) 309 F.3d 433, 436 [“Courts are entitled to assistance from counsel, and an invitation to search without guidance is no more useful than a litigant’s request to a district court at the summary judgment stage to paw through the assembled discovery material. ‘Judges are not like pigs, hunting for truffles buried in’ the record. [Citation.]”].)

Therefore, the court declines to consider the alternative motion for summary adjudication as the request is not properly before the court. Instead, the court addresses the instant application as only a motion for summary judgment. (See *Young v. Super. Ct.* (1986) 179 Cal.App.3d 28, 32 [Trial courts possess the ability to enforce abidance to the “separate statement” requirements, as the failure to comply may, in the court’s discretion, constitute a sufficient ground for denying a motion for summary adjudication of issues.].)

Harker’s Evidentiary Objections

“In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court...” (Code Civ. Proc., § 437c, subd. (c).)

“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.” (Code Civ. Proc., § 437c, subd. (q).)

In opposition, Harker filed objections to evidence submitted with the moving papers. The court however declines to rule on the objections as they are not material to the outcome of the motion for reasons articulated below.

Timeliness

In opposition, Harker argues the motion should be denied as cross-defendant CTC did not comply with the mandatory notice requirements set forth in Code of Civil Procedure section 437c, subdivision (a)(2).

“Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days.” (Code Civ. Proc., § 437c, subd. (a)(2).)

“[A] trial court does not have authority to shorten the minimum notice period for summary judgment hearings absent the express consent of the parties.” (*Urshan v. Musicians’ Credit Union* (2004) 120 Cal.App.4th 758, 768 (*Urshan*).) Also, a trial court abuses its discretion by continuing the summary judgment hearing in an effort to provide the required statutory notice. (See *Robinson v. Woods* (2008) 168 Cal.App.4th 1258 [trial court abused its discretion by continuing noticed hearing for only four days, in an effort to provide 80 days’ notice].) Moreover, “waiver of the right to the statutorily mandated minimum notice period for summary judgment hearings should not be inferred from silence.” (*Urshan, supra*, 120 Cal.App.4th at p. 768.)

According to court records, cross-defendant CTC filed and served its motion for summary judgment on June 22, 2026 with a hearing date set for January 27, 2027. As the hearing falls after the date scheduled for trial, CTC moved ex parte to advance a hearing date before the October 12, 2026 trial date. The trial court granted the application but scheduled the motion for hearing on September 2, 2026, a date which violates the mandatory 81-day notice period. As stated above, the court does not have authority to shorten the notice period. Nor did the parties consent to hearing the motion on September 2, 2026.

In reply, CTC does not dispute the violation of the minimum notice requirements set forth in Code of Civil Procedure section 437c, subdivision (a)(2). Instead, CTC contends Harker did not object at any time to the setting of the motion by the court. But, as stated above, silence by the opposing party does not equate to a waiver of the statutorily mandated notice period. CTC also asserts there is no prejudice to hearing the motion on the date set by the court as Harker has had the motion for an ample period of time to provide a substantive opposition. CTC however does not cite any legal authority for the proposition that absence of prejudice is sufficient to waive the 81-day notice period. Nor is the court aware of any such authority. As a consequence, the motion is denied on this ground alone. To the extent that CTC requests a continuance of the trial, as suggested in the reply papers, it should file the appropriate motion for consideration by the court.

Legal Standard

Any party may move for summary judgment. (Code Civ. Proc., § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*).) “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) “The object of the summary judgment procedure is ‘to cut through the parties’ pleadings’ to determine whether trial is necessary to resolve their dispute. [Citation.]” (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1020 (*Spinks*).)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact...” (*Aguilar, supra*, 25 Cal.4th at p. 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

A defendant moving for summary judgment may satisfy its initial burden either by producing evidence of a complete defense or by showing the plaintiff’s inability to establish a required element of the case. (*Spinks, supra*, 171 Cal.App.4th at p. 1021.)

If a moving defendant makes the necessary initial showing, the burden of production shifts to the plaintiff to make a prima facie showing of the existence of a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); see *Aguilar, supra*, 25 Cal.4th at p. 850.)

A triable issue of material fact exists “if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850, fn. omitted.) If the plaintiff opposing summary judgment presents evidence demonstrating the existence of a disputed material fact, the motion must be denied. (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom.” (*Aguilar, supra*, 25 Cal.4th at p. 856.) The moving party’s evidence is strictly construed, while the opponent’s is liberally construed. (*Id.* at p. 843.)

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation.] ‘A motion for summary adjudication...shall proceed in all procedural respects as a motion for summary judgment.’ [Citation.]” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630.)

“[S]ummary judgment (or summary adjudication) is a drastic remedy and should be used with caution. [Citation.] Because summary judgment is a drastic procedure all doubts as to the propriety of granting a motion for summary judgment should be resolved in favor of the party opposing the motion. [Citations.]” (*Tully v. World Savings & Loan Assn.* (1997) 56 Cal.App.4th 654, 660; see *Kernan v. Regents of University of California* (2022) 83 Cal.App.5th 675, 684 [“The drastic remedy of summary judgment may not be granted unless reasonable minds can draw only one conclusion from the evidence.”].)

Merits

The operative cross-complaint alleges claims primarily for fraud, breach of contract, and negligence. There are also derivative causes of action for indemnity, apportionment and contribution.

“The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.)

“The elements of a breach of contract claim are that a contract was formed; that the plaintiff did everything required by the contract; that the defendant did not do something required by the contract; and that the plaintiff was harmed as a result.” (*CSAA Ins. Exchange v. Hodroj* (2021) 72 Cal.App.5th 272, 276.)

“The essential elements of a cause of action for negligence are: (1) the defendant’s legal duty of care toward the plaintiff; (2) the defendant’s breach of duty – the negligent act or omission; (3) injury to the plaintiff as a result of the breach – proximate or legal cause; and (4) damage to the plaintiff.” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1103.)

As to the fraud, breach of contract, and negligence causes of action, the court finds that cross-defendant CTC fails to meet its initial burden on summary judgment. The supporting memorandum of points and authorities offers only a cursory discussion with respect to the breach of contract and negligence causes of action. Rather, the memorandum is mainly addressed to the fraud claim. But, as to the fraud cause of action, the moving papers do not dispose of any alleged fraudulent misrepresentations in connection with CTC’s website by reference to admissible evidence. (See Cross-Complaint at ¶ 21; see also *Salasguevara v. Wyeth Labs* (1990) 222 Cal.App.3d 379, 384 [“It is the moving party’s burden to make a sufficient showing that the claim is entirely without merit and if that showing is deficient summary judgment must be denied.”].) Moreover, to the extent that CTC argues that risks and assessments regarding the Redwood trees were communicated to Harker, the court finds Harker raised a triable issue of fact as to this point which also warrants denial of the instant motion for summary judgment. (See Harker’s Disputed Facts at Nos. 22, 24; Harker’s Additional Facts at Nos. 2-3, 11-12; see also *Gleason v. Klamer* (1980) 103 Cal.App.3d 782 [appellate court reversed trial court’s order granting summary judgment because there was a single triable issue of fact].)

Accordingly, the motion for summary judgment to the cross-complaint is DENIED.

Disposition

The motion for summary judgment to the cross-complaint is DENIED.

The court will prepare the order.

Calendar Line 2

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Calendar Line 3

Case Name: *Francisco Javier Contreras Chaires v. General Motors, LLC et al.*

Case No. 25CV466769

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES & COSTS

Plaintiff moves for attorney's fees and costs pursuant to Civil Code section 1794(d) following settlement of this action under the Song-Beverly Consumer Warranty Act. Defendant opposes the motion, primarily arguing that the fees requested are excessive and based on templated work.

Reasonableness of Fees

Civil Code section 1794(d) mandates an award of reasonable attorney's fees to a prevailing buyer. In determining a reasonable fee, courts apply the lodestar method, calculated by multiplying the number of hours reasonably expended by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.

Plaintiff seeks \$15,937.50 in attorney's fees based on 41.6 hours of work which includes 5.5 hours of time anticipated in reviewing Defendant's opposition, preparing a reply, and attending the hearing on this motion. Plaintiff also seeks \$985.67 in costs. Plaintiff requests hourly rates of \$450-525 for attorney work performed by attorneys Jorge L. Acosta, Esq and Christopher Urner, Esq. and \$250 for paralegal work.

Having reviewed the moving papers, opposition, reply, declarations, and billing records submitted, the Court finds that the number of hours expended is generally reasonable in this routine Song-Beverly repurchase claim that resolved after approximately 5 months. The records are sufficiently detailed, and the Court does not find pervasive duplication or improper billing practices warranting a broad reduction in hours. The Court acknowledges that reductions by Plaintiff's counsel have already been made.

With respect to hourly rates, the Court finds that the requested hourly rate of \$450-525 for attorneys and \$200 for paralegals reflect the prevailing market rates for comparable services in this community. The court finds the anticipated time unreasonable and reduces it to 2.5 hours (.25 hours will be added if either party contests this tentative.)

With respect to costs, Plaintiff seeks recovery of \$985.67, of which \$93.33 for "other" is unsubstantiated.

Accordingly, the motion for attorney's fees and costs is GRANTED IN PART AND DENIED IN PART, as follows:

1. The Court finds \$450-525 for attorneys is reasonable
2. The court sets \$200/hour as prevailing rate for paralegal work;
3. The Court will apply a reasonable of anticipated time to 2.5 hours.
4. Unless the Plaintiff files documentation supporting the claimed “other” costs with the proposed order, total costs will be awarded at \$892.34

Plaintiff shall prepare, serve, and submit a proposed order consistent with this ruling, ***including the breakdown of the recalculated fee award and supporting documentation for costs (if any)*** accompanied by the necessary Forms EFS-020, within 7 days of the hearing.

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Calendar Line 6

Case Name: *Zededa Inc. vs Broadcom, Inc et al.*

Case No.: 25CV472413

ORDER ON DEFENDANT BROADCOM INC.'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES AND REQUESTS FOR PRODUCTION**I. Background**

Broadcom served Special Interrogatories, Set One, and Requests for Production of Documents, Set One, on Zededa on September 15, 2025. Zededa served initial responses on November 12, 2025, and supplemental or amended responses on February 20, 2026. Broadcom moves to compel further responses to Special Interrogatories Nos. 46 through 67 and Requests for Production Nos. 21, 22, 24, 26, 28, 30, and 32.

The discovery at issue concerns Zededa's alleged costs, work, personnel, documents, customers, and agreements relating to the Vendor Software, Vendor Hosted Services, Vendor Documentation, and Product Requirements at issue in this action. Zededa alleges, among other things, that it expended substantial resources to create and deliver work product to VMware and seeks damages arising from the alleged breach of the Integrated Hosted Service Agreement and related theories.

Broadcom contends that the discovery is relevant to Zededa's alleged performance, costs, reliance damages, and Broadcom's defenses, and that Zededa's responses are evasive, incomplete, improperly numbered, or based on unsupported objections. Zededa opposes, arguing that Broadcom did not adequately meet and confer, that the requested third-party customer and agreement information is irrelevant and protected as confidential or trade secret information, that its cost responses are sufficient, and that any misnumbering could have been corrected without motion practice.

II. Meet and Confer

The Court finds that Broadcom satisfied the meet-and-confer requirement for purposes of this motion. The record reflects substantial written meet-and-confer efforts over several months, including a detailed December 15, 2025 letter, follow-up correspondence, extensions of time, and further communications after Zededa served supplemental responses. Although Zededa contends that additional telephonic, in-person, or videoconference efforts should have occurred after the supplemental responses, the record demonstrates that the parties' positions concerning the disputed discovery were substantially developed and that further informal efforts were not reasonably likely to resolve the dispute in full.

The motion is therefore not denied on meet-and-confer grounds.

III. Governing Standards

A party may move for an order compelling a further response to interrogatories where an answer is evasive or incomplete, where an exercise of the option to produce documents is unwarranted or the required specification of those documents is inadequate, or where an objection is without merit or too general. An interrogatory answer must be complete and straightforward to the extent information is reasonably available to the responding party.

A party may move for an order compelling a further response to a demand for inspection, copying, testing, or sampling where the response is incomplete or evasive or an objection is without merit or too general. The moving party must establish good cause for the discovery sought.

The party resisting discovery bears the burden of justifying its objections. Where confidentiality or trade-secret concerns are asserted, the Court may consider whether those concerns can reasonably be addressed through an appropriate protective order rather than by withholding otherwise discoverable information.

IV. Special Interrogatories Nos. 46 and 47

Special Interrogatory No. 46 asks Zededa to identify each customer, client, or licensee to whom it sold, licensed, or provided the Vendor Software from January 1, 2019 to the present. Special Interrogatory No. 47 asks for the same information concerning Vendor Hosted Services.

Zededa asserted objections including the 35-interrogatory limit, relevance, privilege, confidential business information, privacy, vagueness, burden, overbreadth, compilation, and subparts, and did not provide substantive responsive customer, client, or licensee information.

The objections are overruled. The requested information is relevant to Zededa's allegations concerning the work performed, customization, performance, and damages and to Broadcom's ability to determine whether the work claimed by Zededa was specific to VMware or involved pre-existing products, services, or work performed for other customers. The interrogatories are limited by subject matter and time period, and Zededa has not made a sufficient factual showing of burden, oppression, or overbreadth.

The confidentiality and trade-secret objections do not justify a categorical refusal to provide responsive information. The existing confidentiality order provides a mechanism for protecting confidential business and trade-secret information, and Zededa has not demonstrated that the protections available under that order are inadequate.

The motion is GRANTED as to Special Interrogatories Nos. 46 and 47. Zededa shall serve further verified responses identifying the responsive customers, clients, or licensees, subject to appropriate confidentiality designations under the existing confidentiality order.

V. Special Interrogatories Nos. 48 and 49

Special Interrogatory No. 48 asks Zededa to identify each agreement entered into from January 1, 2019 to the present relating to the sale, licensing, or provision of Vendor Software. Special Interrogatory No. 49 asks for the same information concerning Vendor Hosted Services.

Zededa asserted substantially the same objections as to Special Interrogatories Nos. 46 and 47 and did not provide substantive identifying information.

The objections are overruled. The requested information is relevant to whether the products and services at issue were unique to VMware, whether similar products or services were provided to other customers, and whether Zededa's asserted work, costs, and damages are attributable to VMware-specific customization. The requests are limited by subject matter and time period.

The privilege objection does not justify a wholesale refusal to answer interrogatories seeking the identity and basic information concerning commercial agreements rather than the substance of privileged communications. To the extent responsive information is confidential, it may be protected under the existing confidentiality order.

The motion is GRANTED as to Special Interrogatories Nos. 48 and 49. Zededa shall serve further verified responses identifying the responsive agreements, subject to appropriate confidentiality designations under the existing confidentiality order.

VI. Special Interrogatories Nos. 50, 51, 54, 55, 58, 59, 60, 61, 64, and 65

Special Interrogatories Nos. 50, 54, 58, 60, and 64 ask Zededa to state with particularity its costs to customize the Vendor Software, Vendor Hosted Services, Vendor Documentation, Vendor Software to satisfy Product Requirements, and Vendor Hosted Services to satisfy Product Requirements. Special Interrogatories Nos. 51, 55, 59, 61, and 65 ask Zededa to state with particularity the methodology used to calculate those costs.

Zededa provided a repeated narrative identifying, among other things, Azure monthly costs of \$4,100, monthly COGS costs of \$1,900, three-year production software and hardware costs of \$216,000, support costs resulting in \$259,000, certain VMware-requested features, five man-years across development, system testing, and SRE, project integration costs of \$1 million, and total costs of \$1.259 million.

The Court finds the responses incomplete. Zededa has provided some substantive information, and the responses are not deficient merely because the stated costs do not equal the alleged \$3.3 million contract amount. The issue is that the interrogatories seek the costs and calculation methodologies with particularity, and Zededa's repeated narrative does not separately answer each interrogatory, adequately allocate the asserted costs among the categories requested, or provide sufficient information concerning the factual basis for the calculations, the work performed, the applicable time periods, the personnel involved, or the methodology used to allocate costs.

The motion is therefore GRANTED as to Special Interrogatories Nos. 50, 51, 54, 55, 58, 59, 60, 61, 64, and 65. Zededa shall serve further verified responses separately answering each interrogatory and stating, to the extent reasonably available, the costs or calculation methodology for each category requested, including the factual basis for the response, any allocation methodology used, persons with knowledge, and documents supporting the stated costs or methodology. Zededa is not required to make its cost figures equal the contract price;

it is required to provide complete and straightforward responses to the interrogatories propounded.

VII. Special Interrogatories Nos. 52, 56, 62, and 66

Special Interrogatories Nos. 52, 56, 62, and 66 ask Zededa to identify persons involved in customizing the Vendor Software or Vendor Hosted Services specifically for VMware or to satisfy the Product Requirements.

Zededa's supplemental responses included a list of persons for at least one response, but the responses were misnumbered or did not clearly correspond to the interrogatories as served. Zededa acknowledges that its supplemental responses inadvertently contained numbering errors.

The defect is not merely technical. The responses must be sufficiently identified and organized to permit the propounding party and the Court to determine which response corresponds to which interrogatory. Here, the numbering and correspondence problems prevent that determination.

The motion is GRANTED as to Special Interrogatories Nos. 52, 56, 62, and 66. Zededa shall serve further verified responses that are properly numbered and correspond to each interrogatory. To the extent a previously served list is responsive to a particular interrogatory, Zededa may repeat that information under the correct interrogatory number, provided that the response expressly confirms that the information constitutes a complete response to the interrogatory.

VIII. Special Interrogatories Nos. 53, 57, 63, and 67

Special Interrogatories Nos. 53, 57, 63, and 67 ask Zededa to identify documents relating to customization of the Vendor Software or Vendor Hosted Services specifically for VMware or to satisfy Product Requirements, including source-code materials, version-control records, design and specification documents, change-management records, testing records, project-management materials, and communications.

Zededa invoked the option to produce documents, stating that it would produce responsive, nonprivileged documents subject to the confidentiality order from which Broadcom could audit, inspect, copy, or summarize.

The responses are insufficient. A party electing to produce writings in lieu of an interrogatory answer must specify the writings from which the answer may be ascertained with sufficient particularity to permit the propounding party to locate and identify those writings as readily as the responding party can. A general reference to responsive documents, including documents produced with amended responses, is insufficient.

The motion is GRANTED as to Special Interrogatories Nos. 53, 57, 63, and 67. Zededa shall serve further verified responses that either provide the information requested or specify the responsive writings by Bates number or other sufficiently precise description.

IX. Requests for Production Nos. 21 and 22

Request for Production No. 21 seeks each agreement from January 1, 2019 to the present relating to the sale, licensing, or provision of Vendor Software. Request for Production No. 22 seeks the same category of agreements concerning Vendor Hosted Services.

Zededa objected on grounds including privilege, confidential business information, vagueness, overbreadth, relevance, lack of reasonable particularity, oppression, and subparts.

Good cause exists for the requested discovery. The agreements are relevant to Zededa's claims and Broadcom's defenses concerning the nature of the products and services, whether the asserted work was VMware-specific, whether similar products or services were provided to others, and whether Zededa's asserted costs and damages are properly attributable to the VMware project. The requests are limited by product or service category and time period. Zededa has not made a sufficient factual showing that the burden or intrusiveness of production outweighs the likely benefit of the discovery.

The confidentiality and trade-secret objections do not justify withholding all responsive documents. Responsive confidential material may be designated under the existing confidentiality order. To the extent Zededa withholds documents on the basis of attorney-client privilege or attorney work product, it shall provide sufficient information to permit evaluation of the asserted privilege, including a privilege log as appropriate.

The motion is GRANTED as to Requests for Production Nos. 21 and 22. Zededa shall serve further code-compliant written responses and produce all nonprivileged responsive documents, subject to appropriate confidentiality designations. Zededa shall provide a privilege log for responsive documents withheld on attorney-client privilege or attorney-work-product grounds.

X. Requests for Production Nos. 24, 26, 28, 30, and 32

Request for Production No. 24 seeks documents relating to customization of Vendor Software specifically for VMware. Request for Production No. 26 seeks documents relating to customization of Vendor Hosted Services specifically for VMware. Request for Production No. 28 seeks documents relating to customization of Vendor Documentation specifically for VMware. Request for Production No. 30 seeks documents relating to customization of Vendor Software to satisfy Product Requirements. Request for Production No. 32 seeks documents relating to customization of Vendor Hosted Services to satisfy Product Requirements.

Zededa asserted objections including privilege, confidential business information, cumulative or duplicative, vagueness, lack of reasonable particularity, oppression, assumption of facts not in evidence, and subparts.

Good cause exists for the requested production. Zededa's claims place customization, performance, work performed, personnel, costs, and damages at issue. The requests seek documents directly bearing on what work was performed, when it was performed, by whom, and in connection with which alleged requirements. The requests are tied to the products, services, documentation, and Product Requirements placed at issue by Zededa's claims.

Zededa has not made a sufficient factual showing to support its burden, oppression, overbreadth, or cumulative objections. Nor do the privilege and confidentiality objections justify a categorical refusal to produce responsive documents. Confidential materials may be designated under the existing confidentiality order, and documents withheld on attorney-client privilege or attorney-work-product grounds shall be identified sufficiently to permit evaluation of the asserted privilege, including by privilege log where appropriate.

The motion is GRANTED as to Requests for Production Nos. 24, 26, 28, 30, and 32. Zededa shall serve further code-compliant written responses and produce all nonprivileged responsive documents, subject to appropriate confidentiality designations. Zededa shall provide a privilege log for responsive documents withheld on attorney-client privilege or attorney-work-product grounds.

XI. Monetary Sanctions

Broadcom requests monetary sanctions based on 12 hours of attorney time at an hourly rate of \$605, for a total of \$7,260, including time incurred and anticipated in connection with the motion. Zededa requests monetary sanctions against Broadcom in the amount of \$9,000.

Broadcom substantially prevailed on the motion. The Court finds that Zededa's incomplete and nonresponsive responses and unsupported objections required Broadcom to incur reasonable expenses in bringing the motion. The Court does not find that Zededa acted with substantial justification, or that other circumstances make an award of sanctions unjust.

The Court nevertheless finds that the full amount requested is not warranted. Zededa provided some substantive supplemental responses, certain deficiencies involved correctable numbering issues, and its objections concerning confidentiality and trade-secret protection presented colorable issues, although they did not ultimately justify withholding the discovery ordered herein. The Court also declines to award fees for anticipated time that has not yet been incurred.

The Court finds that \$6,000 is a reasonable amount of monetary sanctions under the circumstances.

Accordingly, Broadcom's request for monetary sanctions is GRANTED IN PART. Zededa Inc. shall pay monetary sanctions to Broadcom Inc., through its counsel of record, in the amount of \$6,000, within 30 days after service of notice of entry of this Order.

Zededa's request for monetary sanctions against Broadcom is DENIED.

XII. Order

For the foregoing reasons, IT IS HEREBY ORDERED:

1. Broadcom's motion to compel further responses to Special Interrogatories, Set One, Nos. 46 through 67, is GRANTED.

2. Broadcom's motion to compel further responses to Requests for Production of Documents, Set One, Nos. 21, 22, 24, 26, 28, 30, and 32, is GRANTED.
3. Zededa shall serve further verified responses to Special Interrogatories Nos. 46 through 67, consistent with this Order, within 20 days after service of notice of entry of this Order.
4. Zededa shall serve further code-compliant written responses to Requests for Production Nos. 21, 22, 24, 26, 28, 30, and 32, consistent with this Order, within 20 days after service of notice of entry of this Order.
5. Zededa shall produce all nonprivileged responsive documents within 20 days after service of notice of entry of this Order, subject to appropriate confidentiality designations under the existing confidentiality order.
6. For any responsive documents withheld on the basis of attorney-client privilege or attorney work product, Zededa shall provide a privilege log within 20 days after service of notice of entry of this Order, to the extent a privilege log is required.
7. Zededa may designate responsive information and documents as confidential under the existing confidentiality order where appropriate and in good faith.
8. Broadcom's request for monetary sanctions is GRANTED IN PART. Zededa Inc. [and/or its counsel] shall pay monetary sanctions to Broadcom Inc. in the amount of \$6,000.00 within 30 days after service of notice of entry of this Order.
9. Zededa's request for monetary sanctions against Broadcom is DENIED.

IT IS SO ORDERED.

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Calendar Line 7

Case Name: *Dominique Hermsdorff v. Cy4DataLabs, Inc., et al.*

Case No.: 25CV472884

Plaintiff Dominique Hermsdorff (“Plaintiff”) alleges causes of action against Defendants Cy4DataLabs, Inc. (“Cy4Data”), Todd Carper (“Carper”),¹ Lance L. Smith (“Smith”) (collectively, “Defendants”), and Does 1 through 20, inclusive. Presently before the court is Defendants’ demurrer (“Demurrer”) to Plaintiff’s First Amended Complaint (“FAC”).

I. BACKGROUND

Plaintiff alleges that in early 2019, Carper recruited Plaintiff to develop “a new encryption tool that contemplated high levels of security through the use of advanced encryption keys and data handling and storage systems.” (FAC, ¶ 9.) Plaintiff alleges he entered an oral contract with Defendants in which Carper and Smith agreed that “in exchange for [Plaintiff’s] development work ... [Plaintiff would] be made the third founder and receive a 25% equity shareholder of the business that would develop, market, and sell” the tool Plaintiff developed. (FAC, ¶ 10.) Carper contributed technical work to the tool and was responsible for the business’s administrative and legal matters, including incorporation and founder agreements. (FAC, ¶ 14.) Smith oversaw business development and strategies, and Carper and Smith together made joint decisions relating to organization, ownership, operations, and staffing. (*Ibid.*) Plaintiff worked full-time on the tool and “periodically approached Carper to formalize their agreement regarding [Plaintiff’s] founder status and equity ownership” in the business. (FAC, ¶¶ 15, 16.) Carper told Plaintiff that the paperwork would be done as soon as the business became an incorporated entity. (FAC, ¶ 16.) Plaintiff completed his work for the project in mid-2024. (FAC, ¶ 18.) Carper and Smith registered the business as Cy4Data and issued themselves equity. (FAC, ¶¶ 19, 20.) Defendants refused Plaintiff’s request to be named as a co-founder and given equity ownership. (FAC, ¶ 21.)

Plaintiff alleges causes of action for (1) breach of contract against Defendants Carper and Smith; (2) breach of contract against Defendant Cy4Data; (3) breach of the implied covenant of good faith and fair dealing against Defendants Carper and Smith; (4) promissory estoppel against Defendants Carper and Smith; (5) fraud (false promise)²; (6) failure to pay wages; (7) failure to pay overtime compensation; (8) failure to provide meal periods; (9) failure to provide required rest breaks; (10) failure to provide wage statements; (11) failure to pay wages on separation; (12) services rendered (*quantum meruit*); (13) unfair business practices. Defendants demurred to the FAC. Plaintiff opposes and Defendants filed a reply.³

II. DEMURRER

A. Legal Standard

¹ Plaintiff’s First Amended Complaint refers to both “Carper” and an unidentified “Carter.” The court will refer to Defendant Todd Carper as “Carper” and will assume the FAC’s references to “Carter” are to defendant Todd Carper.

² Causes of action five through thirteen are alleged against all Defendants.

³ Defendants filed ex parte applications seeking leave to file an overlength demurrer and reply. This court granted both.

The function of a demurrer is to test the legal sufficiency of a pleading. (*Trs. Of Capital Wholesale Elec. Etc. Fund v. Shearson Lehman Bros.* (1990) 221 Cal.App.3d 617, 621.) Consequently, “[a] demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice.” (*Mathews v. Becerra* (2019) 8 Cal.5th 756, 762, internal citations and quotations omitted; see also Code Civ. Proc., § 430.30, subd. (a).) “It is not the ordinary function of a demurrer to test the truth of the plaintiff’s allegations or the accuracy with which he describes the defendant’s conduct. ... Thus, ... the facts alleged in the pleading are deemed to be true, however improbable they may be.” (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958, internal citations and quotations omitted.)

In ruling on a demurrer, the allegations of the complaint must be liberally construed, with a view to substantial justice between the parties. (*Glennen v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) Nevertheless, while “[a] demurrer admits all facts properly pleaded, [it does] not [admit] contentions, deductions or conclusions of law or fact.” (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.)

B. Discussion

i. Adequacy of Allegations against Smith and Cy4Data

Defendants argue that Smith and Cy4Data should both be dismissed as defendants because the FAC as a whole does not state any causes of action against either party. Specifically, Defendants asserts that the “FAC’s allegations center entirely on statements made by Carper and an alleged oral agreement between Plaintiff and Carper,” and that the FAC fails to allege actionable conduct by either Smith or Cy4Data. (Demurrer, p. 18:22-23.)

“Ordinarily, a party seeking to assign liability to the principal for the acts of an ostensible agent must establish three elements: (1) the party held a reasonable belief in the agent’s authority in dealing with the agent; (2) the principal’s conduct—active or neglectful—generated the party’s belief in the agent’s authority; and (3) the party was not negligent in holding the belief. [Citation.] In lieu of showing element (2), the party may show that the principal ratified the conduct performed in its name. ‘Ratification is the subsequent adoption by one claiming the benefits of an act, which without authority, another has voluntarily done while ostensibly acting as the agent of him who affirms the act and who had the power to confer authority (Civ. Code, §§ 2310, 2312).’ [Citation.]” (*LAOSD Asbestos Cases* (2018) 28 Cal.App.5th 862, 885, fn. 12.)

Here, the FAC seeks to assign Smith liability for the acts of Carper. The FAC alleges that “when Carper was making said promise to Plaintiff, he was acting as an agent of Smith and/or that Smith knew of the promise and ratified the agreement, either through subsequent contract and/or through his conduct thereafter. In the alternative, Plaintiff alleges that Smith and Carper were acting in concert and jointly agreed to the terms that Carper communicated to Plaintiff.” (FAC, ¶ 11.)

Defendant argues that “the FAC pleads no facts supporting the ‘belief’ that Carper acted as Smith’s agent, that Smith ever communicated any promise to Plaintiff, or that Smith ratified any promise[.]” (Demurrer, p. 20:17-21.) “A plaintiff may allege on information and belief any matters that are not within his personal knowledge, *if he has information leading him to believe that the allegations are true*, and thus a pleading made on information and belief

is insufficient if it merely asserts the facts so alleged without alleging such information that leads the plaintiff to believe that the allegations are true.” (*Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-1159, internal quotation marks and citations omitted, emphasis in original.) The FAC has alleged the basis for Plaintiff’s belief that Smith knew of the promise and ratified the agreement by alleging that Smith oversaw business development and strategies, and Carper and Smith together made joint decisions relating to organization, ownership, operations, and staffing. (FAC, ¶ 14.) The FAC also alleges that Carper had responsibility for the business’s legal and administrative matters, thus alleging that Carper had “authority to act for and in the place of” Smith “for the purpose of bringing him or her into legal relations with third parties.” (*Brown v. USA Taekwondo* (2019) 40 Cal.App.5th 1077, 1106, internal quotation marks and citations omitted.)

Having determined that the FAC adequately pleads liability as to Smith, the court does not address the other legal theories for liability raised in the FAC. “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Similarly, Defendants argue that the FAC does not adequately plead Cy4Data’s liability because “the FAC provides no allegations supporting Cy4Data’s liability for pre-incorporation acts and alleged wrongdoings.” (Demurrer, p. 24:4-5.) However, the FAC also alleges that Cy4Data received benefits from Plaintiff’s performance of the contract and that Cy4Data had actual knowledge of its terms such that Cy4Data can be said to have ratified the contract and thus can be liable.

“It is the general rule that knowledge of an officer of a corporation within the scope of his duties is imputable to the corporation... Receipt of benefits from the performance of the contract without actual knowledge of its terms is insufficient.” (*Steele v. Litton Industries, Inc.* (1968) 260 Cal.App.2d 157, 169-170 (*Steele*), internal quotation marks and citations omitted.) In *Steele*, the court held that an agent’s promise of a share in founders stock could not be binding on a corporation that the promisee knew the agent did not represent. (*Id.* at p. 168.) “No evidence has been pointed out in the record that [the defendant corporation] was ever aware of such a promise on the part of [the agent].” (*Ibid.*) Here, the FAC alleges that two officers of Cy4Data (Carper and Smith) were aware of Plaintiff’s contract (FAC, ¶ 11), and thus knowledge of the contract can be imputed to Cy4Data. In addition, the FAC alleges that Cy4Data benefitted from Plaintiff’s performance because Cy4Data markets and sells the tool that Plaintiff developed as part of the contract. (FAC, p. 3, fn. 1.)

Having determined that the court adequately pleads liability as to Cy4Data, the court does not address the other legal theories for liability raised in the FAC. (See *Ouelimane, supra*, at p. 38.)

The FAC adequately alleges Smith and Cy4Data’s liability.

ii. Causes of Action for Breach of Contract, Breach of Implied Covenant of Good Faith and Fair Dealing, Promissory Estoppel, and Fraud

First Cause of Action for Breach of Contract (against Carper and Smith)

Defendants demur to Plaintiff's cause of action for breach of contract against Carper and Smith because "the purported contract, as pled, is not sufficiently definite and certain as to its terms to constitute an enforceable agreement under California law." (Demurrer, p. 27:24-25.) Additionally, Defendants argue that Smith should be dismissed from the FAC as "there are no allegations that Smith made any promise, statement, or representations to Plaintiff." (Demurrer, p. 19:4-5.)

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) The elements for breach of an oral contract are the same as those for a breach of a written contract. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 453.) The terms of an "oral contract may be pleaded generally as to its effect because it is rarely possible to allege the exact words." (*Scolinos v. Kolts* (1995) 37 Cal.App.4th 635, 640.)

"Under California law, a contract will be enforced if it is sufficiently definite (and this is a question of law) for the court to ascertain the parties' obligations and to determine whether those obligations have been performed or breached.' [Citation.] 'To be enforceable, a promise must be definite enough that a court can determine the scope of the duty [,] and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages.' [Citations.] 'Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable.' [Citations.] 'The terms of a contract are reasonably certain if they provide a basis for determining the existence of a breach and for giving an appropriate remedy.' [Citations.] But, '[i]f ... a supposed "contract" does not provide a basis for determining what obligations the parties have agreed to, and hence does not make possible a determination of whether those agreed obligations have been breached, there is no contract.' [Citation.]" (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 208 (*Bustamante*).)

Here, the FAC alleges that Plaintiff entered an oral contract with Carper in which Carper agreed that "in exchange for [Plaintiff's] development work ... [Plaintiff would] be made the third founder and receive a 25% equity shareholder of the business that would develop, market, and sell" the tool Plaintiff developed. (FAC, ¶ 10.) Carper's promise to Plaintiff was sufficiently definite – Plaintiff would provide his software and architecture developer skills to the project in exchange for being formally named a founder and become a shareholder with a 25% equity stake in the business that Carper would create to sell the tool Plaintiff developed. (FAC, ¶¶ 8-10.)

Defendants' demurrer to the FAC's first cause of action for breach of contract (against Carper and Smith) is **OVERRULED**.

Second Cause of Action for Breach of Contract (Against Cy4Data)

Defendants demur to Plaintiff's second cause of action for breach of contract and argue that Cy4Data should be dismissed as a defendant because "the FAC provides no allegations supporting Cy4Data's liability for pre-incorporation acts and alleged wrongdoings." (Demurrer, p. 24:4-5.)

Defendants argue that the FAC does not sufficiently allege an oral contract. But, as explained above, the FAC's allegations state a claim for breach of contract, and the FAC adequately alleges Cy4Data's liability.

Defendants' demurrer to the FAC's second cause of action for breach of contract (against Cy4Data) is **OVERRULED**.

*Third Cause of Action for Breach of Implied Covenant of Good Faith and Fair Dealing
(Against Carper and Smith)*

Defendants demur to Plaintiff's third cause of action for breach of the implied covenant of good faith and fair dealing on the basis that the FAC alleges only contract breach with respect to defendant Carper and is thus inadequately pled to sustain a cause of action for breach of the implied covenant of good faith and fair dealing against both Carper and Smith.

"The law implies a covenant of good faith and fair dealing in every contract. The covenant prevents one contracting party from unfairly frustrating the other's right to the benefits of the agreement actually made." (*Tuli v. Specialty Surgical Center of Thousand Oaks, LLC* (2024) 105 Cal.App.5th 997, 1020, internal citation omitted.) "A claim for breach of the implied covenant of good faith and fair dealing requires the existence of a contract, whether express or implied...[t]here is no obligation to deal fairly or in good faith absent an existing contract." (*Alameda Health System v. Alameda County Employees' Retirement Assn.* (2024) 100 Cal.App.5th 1159, 1190, internal citation and quotation marks omitted.) Where the defendant's acts are directly actionable as a breach of contract; "a claim that merely realleges that breach as a violation of the covenant is superfluous." (*Guz v. Bechtel National Inc.* (2000) 24 Cal.4th 317, 352.) "The implied covenant of good faith and fair dealing does not impose substantive terms and conditions beyond those to which the parties actually agreed." (*Id.* at p. 349.)

"The implied covenant of good faith and fair dealing rests upon the existence of some specific contractual obligation. [Citation.] 'The covenant of good faith is read into contracts in order to protect the express covenants or promises of the contract, not to protect some general public policy interest not directly tied to the contract's purpose.' [Citation.] ... 'In essence, the covenant is implied as a supplement to the express contractual covenants, to prevent a contracting party from engaging in conduct which (while not technically transgressing the express covenants) frustrates the other party's rights to the benefits of the contract.'" (*Racine & Laramie, Ltd. v. Department of Parks & Recreation* (1992) 11 Cal.App.4th 1026, 1031-1032.)

As explained above, the FAC adequately pleads the existence of an oral contract, which gives rise to an implied covenant of good faith and fair dealing. The FAC alleges that Carper and Smith "attempt[ed] to use the very act of incorporating the Company to insulate themselves and the Company from liability to Plaintiff for breach of promises." (FAC, ¶ 51.) However, the FAC does not allege that the parties' oral contract included a requirement that parties formalize the terms by executing a written contract, and thus Carper's alleged refusal to formalize the contract can be considered neither a breach of the oral contract nor of the implied covenant of good faith and fair dealing. (See *Guz v. Bechtel National Inc.* (2000) 24 Cal.4th 317, 349 ["The implied covenant of good faith and fair dealing does not impose substantive terms and conditions beyond those to which the parties actually agreed."].) In addition, the FAC does not adequately allege how Carper's refusal to make the oral contract a written one

frustrated Plaintiff's rights to the benefits of the oral contract, because Carper's obligations to Plaintiff under the oral contract were the same as they would have been under the written contract. Said another way, Plaintiff's rights to the benefits of the contract would have been unchanged had Carper executed a written contract, as an oral contract has the same enforceability as a written one. (Civ. Code, § 1622.) The FAC does not adequately allege breach of the implied covenant of good faith and fair dealing against Carper and thus does not adequately allege breach against Smith.

Defendants' demurrer to the FAC's third cause of action for breach of the implied covenant of good faith and fair dealing is **SUSTAINED** with **30 DAYS' LEAVE TO AMEND**.

Fourth Cause of Action for Promissory Estoppel (Against Carper and Smith)

Defendants demur to Plaintiff's fourth cause of action for promissory estoppel on the basis that the promise alleged is insufficiently clear and unambiguous in its terms and is insufficiently pled to establish Smith's liability.

The elements of a promissory estoppel claim are: "(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) [the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by [that party's] reliance...To be enforceable, a promise need only be definite enough that a court can determine the scope of the duty[,] and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages." (*Broome v. Regents of University of California* (2022) 80 Cal.App.5th 375, 389, internal citations and quotation marks omitted.)

'Promissory estoppel is "a doctrine which employs equitable principles to satisfy the requirement that consideration must be given in exchange for the promise sought to be enforced." [Citation.]' [Citation.] Because promissory estoppel is an equitable doctrine to allow enforcement of a promise that would otherwise be unenforceable, courts are given wide discretion in its application. [Citations.]" (*US Ecology, Inc. v. State of California* (2005) 129 Cal.App.4th 887, 901-902.)

Defendants argue that "[t]he alleged statements that Defendants 'would make [Plaintiff] one of the founders' and give him '25% equity ownership of the Company upon incorporation' (FAC ¶¶ 55-56) are indefinite and fail to specify the type or class of equity, vesting, restrictions, timing of issuance, or other essential terms of this purported promise." (Demurrer, p. 31:1-4.) The FAC alleges that Carper promised Plaintiff a financial stake in the company through 25% equity and the title of co-founder. (FAC, ¶ 10.) The lack of specific detail as to the nature and type of the equity does not render Carper's promise so ambiguous that the court cannot determine the scope of Carper's duty to Plaintiff.

In addition, as explained above, the FAC has alleged the basis for Plaintiff's belief that Smith knew of the promise and ratified the agreement by alleging that Smith oversaw business development and strategies, and Carper and Smith together made joint decisions relating to organization, ownership, operations, and staffing. (FAC, ¶ 14.)

Defendants' demurrer to the FAC's fourth cause of action for promissory estoppel is **OVERULED**.

Fifth Cause of Action for Fraud (False Promise)

Defendants demur to Plaintiff's fifth cause of action for fraud (false promise) on the basis that the economic loss rule bars Plaintiff's recovery and additionally that the claim is insufficiently pled.

"The elements of fraud... are (a) misrepresentation (false representation, concealment or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage. [Citation]" (*Agosta v. Astor* (2004) 120 Cal.App.4th 596, 608.)

Under the economic loss rule, a plaintiff is precluded from recovery in tort where his damage consists solely of an economic loss. (*Seely v. White Motor Co.* (1965) 63 Cal.2d 9, 17-18.) This rule arises out of "[t]he distinction that the law has drawn between tort recovery for physical injuries and warranty recovery for economic loss." (*Id.* at p. 19.) Typically, plaintiff's may only recover in tort for claims amounting to breach of contract where: "(1) the breach is accompanied by a traditional common law tort, such as fraud or conversion; (2) the means used to breach the contract are tortious, involving deceit or undue coercion or; (3) one party intentionally breaches the contract intending or knowing that such a breach will cause severe, unmitigable harm in the form of mental anguish, personal hardship, or substantial consequential damages." [Citation.]" (*Erlich v. Menezes* (1999) 21 Cal.4th 543, 553-554.)

Here, the FAC does not allege tortious or deceitful conduct independent of the breach of contract. Carper and Smith's refusal to supplant the oral contract with a written one cannot be considered fraud, as Carper and Smith did not represent to Plaintiff that there would be a written contract.

Defendants' demurrer to the FAC's fifth cause of action for fraud is **SUSTAINED with 30 DAYS' LEAVE TO AMEND**.

iii. Sixth through Eleventh Causes of Action

The sixth through eleventh causes of action allege wage, rest break, overtime, and wage statement violations based on Labor Code. Defendants demur to Plaintiff's wage and hour claims "on the grounds that Plaintiff fails to plead facts establishing an employment relationship with any Defendant," that the claims lack specificity, that the FAC does not plead entitlement to wages, and that many of the FAC's claims are barred by statute of limitations. (Demurrer, p. 36:10-11.)

Defendant argues that "[a]t most, the FAC describes an equity-for-services cofounder arrangement, pursuant to which Plaintiff concedes he worked 'without pay' expecting equity (FAC ¶¶ 15, 26, 79). This is inconsistent with allegations that any Defendant controlled his wages, hours, or working conditions or engaged him as a wage-earning employee." (Demurrer, p. 37:3-6.)

Payment of wages as governed by Labor Code cannot be contravened or set aside by private agreement. (Lab. Code, § 219, subd. (a).) Industrial Welfare Commission (“IWC”) wage orders specify “minimum wages, maximum hours of work, and standard conditions of labor.” (*Martinez v. Combs* (2010) 49 Cal.4th 35, 50.) “To employ, then, under the IWC’s definition, has three alternative definitions. It means: (a) to exercise control over the wages, hours or working conditions, *or* (b) to suffer or permit to work, *or* (c) to engage, thereby creating a common law employment relationship.” (*Id.* at p. 64, emphasis in original.)

Here, the FAC does not adequately allege facts to show that Defendants “employed” Plaintiff. The FAC does not allege that Defendants “determined [Plaintiff’s] rate and manner of pay (hourly or piece-rate), and set [his] hours, telling [him] when and where to report to work and when to take breaks.” (*Martinez v. Combs*, *supra*, at p. 72.) Nor does the FAC allege that Defendants “supervised or exercised control over” Plaintiff as he worked. (*Id.* at p. 76.) The FAC does allege that Carper “engaged” Plaintiff by recruiting him to work on the tool (FAC, ¶ 9), but this is insufficient to establish entitlement to labor law protections. (See *Martinez v. Combs*, *supra*, at p. 65 [“While the common law definition of employment plays an important role in the wage orders’ definition ... to apply only the common law definition while ignoring the rest of the IWC’s broad regulatory definition would substantially impair the commission’s authority and the effectiveness of its wage orders.”].)

The court does not reach the issue of the Plaintiff’s entitlement to wages under the Labor Code, if the causes of action must be pled with particularity, or if his claims were time barred, as the FAC does not adequately plead an employment relationship between Plaintiff and Defendants which would entitle Plaintiff to Labor Code protections.

Defendants’ demurrer to Plaintiff’s sixth cause of action for failure to pay wages, seventh cause of action for failure to pay overtime compensation, eighth cause of action for failure to provide meal periods, ninth cause of action for failure to provide required rest breaks, tenth cause of action for failure to provide wage statements and eleventh cause of action for failure to pay wages on separation is **SUSTAINED with 30 DAYS’ LEAVE TO AMEND.**

iv. Twelfth Cause of Action (*Quantum Meruit*-Services Rendered)

Defendants demur to Plaintiff’s twelfth cause of action for *quantum meruit* (services rendered) on the basis that the claim is precluded by Plaintiff’s breach of contract causes of action.

“ ‘Quantum meruit refers to the well-established principle that “the law implies a promise to pay for services performed under circumstances disclosing that they were not gratuitously rendered.” [Citation.] To recover in quantum meruit, a party need not prove the existence of a contract [citations], but it must show the circumstances were such that “the services were rendered under some understanding or expectation of both parties that compensation therefore was to be made” [citations].’ [Citation.] The requisite elements of quantum meruit are (1) the plaintiff acted pursuant to ‘an explicit or implicit request for the services’ by the defendant, and (2) the services conferred a benefit on the defendant. [Citation.]” (*Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.* (2018) 24 Cal.App.5th 153, 180.)

“[A] plaintiff may plead inconsistent claims that allege both the existence of an enforceable agreement and the absence of an enforceable agreement.” (*Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1389 (*Klein*)).) However, the FAC here does not allege the absence of an enforceable agreement in the alternative, but simply reiterates that Plaintiff performed services for Defendants, who were unjustly enriched. (FAC, ¶¶ 117-121.) Like in *Klein*, “plaintiffs’ breach of contract claim pleaded the existence of an enforceable agreement and their unjust enrichment claim did not deny the existence or enforceability of that agreement.” (*Klein, supra*, at p. 1389.)

Defendants’ demurrer to the FAC’s twelfth cause of action for *quantum meruit* (services rendered) is **SUSTAINED with 30 DAYS’ LEAVE TO AMEND.**

v. Thirteenth Cause of Action (Unfair Business Practices)

Defendants demur to Plaintiff’s thirteenth cause of action for unfair business practices on the basis that the FAC fails to plead unlawful, unfair, or fraudulent business practices, and because there is an adequate remedy at law.

“The UCL prohibits ‘any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising,’ and any act prohibited by the false advertising law. (Bus. & Prof. Code, § 17200.) “Section 17200 ‘borrows’ violations from other laws by making them independently actionable as unfair competitive practices. In addition, under section 17200, a practice may be deemed unfair even if not specifically proscribed by some other law.” (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1143, internal quotations and citations omitted.)

This court has found that the first, second, and fourth causes of action each state a claim. Plaintiff argues that they do not have an adequate remedy at law because they seek injunctive relief, which would not be available otherwise. Plaintiff requests leave to amend “to expressly plead the inadequacy of legal remedies and to identify the ongoing public-facing conduct to be enjoined[.]” (Opposition to Demurrer, p. 18:20-21.)

Defendants’ demurrer to Plaintiff’s thirteenth cause of action for unfair business practices is **SUSTAINED with 30 DAYS’ LEAVE TO AMEND.**

DISPOSITION

Defendants’ demurrer to the first, second, and fourth causes of action is **OVERRULED.** Defendants’ demurrer to the third, fifth, and sixth through thirteenth causes of action is **SUSTAINED with 30 DAYS’ LEAVE TO AMEND.**

The court will prepare the Order.

Calendar Line 8**Case Name:** *Jason Adair vs Elisity, Inc.***Case No.:** 25CV476583

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One, and for Monetary Sanctions

Timeliness

The first of five Plaintiff's motions is set for September 2, 2026. As to the present matter, Defendant filed its Opposition on August 24, 2026. The Opposition therefore was not filed within the time prescribed by Code of Civil Procedure section 1005(b), which requires opposition papers to be served and filed at least nine court days before the hearing.

California Rules of Court, rule 3.1300(d), provides that the Court has discretion to refuse to consider a late-filed paper. The Court notes Defendant's failure to comply with the statutory filing deadline. Nevertheless, because the Opposition was filed only two court days late and because the Court can address the issues raised without prejudice to Plaintiff, the Court exercises its discretion to consider the Opposition.

The Court therefore reaches the merits of the motion.

Defendant's Anticipated Motion to Compel Arbitration

Defendant argues that this action is pending in the wrong forum because Plaintiff's claims are subject to binding arbitration. Defendant's counsel states in a declaration executed August 24, 2026, that Defendant "is filing a Motion to Compel Arbitration and Stay Proceedings."

As of September 1, 2026, however, Defendant has not filed a motion to compel arbitration (nor have they made a reservation on the court's scheduling portal.) The Court therefore has no arbitration motion before it and has not been asked to determine whether a valid and enforceable arbitration agreement exists, whether Plaintiff's claims fall within its scope, or whether these proceedings should be stayed. Defendant's stated intention to file a motion to compel arbitration does not, by itself, stay discovery or otherwise relieve Defendant of its present discovery obligations. Nor has Defendant obtained an order staying these proceedings.

Accordingly, the Court declines to defer or deny Plaintiff's discovery motion based upon Defendant's anticipated arbitration motion.

Defendant's Purported Supplemental Responses

Defendant asserts, without waiving arbitration, that it voluntarily served verified substantive supplemental responses on February 12, 2026. Those responses, however, concern the four other discovery motions presently set for hearing on September 4, 2026, and do not address the Special Interrogatories that are the subject of Plaintiff's September 2 motion.

Accordingly, the February 12, 2026 supplemental responses do not moot the present motion.

To the extent Defendant contends that it has otherwise served supplemental responses to the Special Interrogatories at issue here, Defendant has not demonstrated that such responses fully resolve the deficiencies identified in Plaintiff's motion.

Motion to Compel Further Responses

Code of Civil Procedure section 2030.300 authorizes a party to move for a further response to interrogatories where the responding party has provided an answer that is incomplete or evasive, or where an objection is without merit or too general. The Court finds that Plaintiff has established good cause for the requested discovery and that further responses are warranted.

Accordingly, Plaintiff's motion to compel further responses to the Special Interrogatories, Set One, is GRANTED.

Defendant shall serve further verified responses to the interrogatories identified in Plaintiff's motion, without objections unless a legally valid objection applies to the particular interrogatory, within 20 days of service of notice of entry of this order.

Monetary Sanctions

Plaintiff requests monetary sanctions based on four hours of attorney time at an hourly rate of \$900. The Court understands that the four-hour request encompasses the preparation of all four pending discovery motions, rather than this motion alone.

Code of Civil Procedure section 2030.300(d) provides for monetary sanctions against a party or attorney who unsuccessfully opposes a motion to compel further responses, absent substantial justification or other circumstances making sanctions unjust. The Court finds that Defendant was not substantially justified in opposing the motion on the grounds asserted and finds an award of sanctions appropriate here. Given the nature and scope of this particular motion, and the overlapping issues among the discovery motions, the Court finds 1.5 hours to be a reasonable amount of attorney time attributable to this motion. At the requested rate of \$900 per hour, the reasonable amount of sanctions is therefore \$1,350.

Accordingly, Plaintiff is awarded \$1,350 in monetary sanctions, payable by Defendant and/or Defendant's counsel, jointly and severally, within 30 days of service of notice of entry of this order.

6. September 4, 2026 Discovery Motions

The Court is aware that four additional discovery motions are presently set for hearing on September 4, 2026.

Defendant has represented that it intends to file a motion to compel arbitration and stay these proceedings. If Defendant intends to seek a stay of the pending discovery matters based upon arbitration, Defendant should file and serve its motion to compel arbitration and request for stay *immediately*.

The Court will consider the procedural posture of the case, including any properly filed motion to compel arbitration and request for stay, in determining how to proceed with the September 4 discovery matters. Nothing in this ruling expresses any view concerning the merits of any future motion to compel arbitration or request for stay.

DISPOSITION

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One, is GRANTED.

Defendant shall serve further verified responses as ordered above within 20 days of service of notice of entry of this order.

Plaintiff is awarded \$1,350 in monetary sanctions, payable by Defendant and/or Defendant's counsel, jointly and severally, within 30 days of service of notice of entry of this order.

Plaintiff to prepare the final order, accompanied by the necessary Forms EFS-020, within 7 days of the date of the hearing.

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Calendar line 9**Case Name:** *Deepak Jariwala v FCA US LLC***Case No.:** 26CV487410

Plaintiff Deepak Jariwala's Motion to Enforce Code of Civil Procedure section 871.26

Background

Plaintiff filed this Song-Beverly Consumer Warranty Act action on February 17, 2026, concerning a 2024 Jeep Wrangler 4xe. Defendant FCA US LLC filed its Answer on April 1, 2026. Before filing suit, Plaintiff requested that FCA repurchase the Subject Vehicle. Plaintiff made that request on January 6, 2026, and FCA agreed to repurchase the vehicle on January 12, 2026.

Section 871.26 applies to this action. Within 60 days after the filing of an answer or other responsive pleading, the statute requires the parties, without awaiting a discovery request, to provide the initial disclosures and documents specified in subdivisions (f), (g), and (h). (Code Civ. Proc., § 871.26, subd. (b).) The 60-day period following FCA's April 1, 2026 Answer expired on May 31, 2026, a Sunday; therefore, the production deadline was June 1, 2026.

Among the documents required to be produced by the manufacturer are "[w]arranty policies and procedure manuals" (§ 871.26, subd. (h)(12)) and, "[i]f a pre-suit restitution or replacement request is made," the manufacturer's written statement of the policies and procedures used to evaluate customer requests for restitution or replacement pursuant to Lemon Law claims (§ 871.26, subd. (h)(15)).

On May 29, 2026, FCA produced numerous documents concerning the Subject Vehicle, including repair-order detail reports, warranty claims records, the owner's manual, warranty information booklet, communications between Plaintiff and FCA, technical service bulletins, and applicable recalls. FCA did not, however, produce the warranty policies and procedure manuals or the written statement of policies and procedures described in subdivisions (h)(12) and (h)(15).

Instead, FCA provided Plaintiff with a proposed protective order and advised that the proposed order would apply to, among other things, its Warranty Administration Manual, Dealer Policy Manual, and Customer Assistance Center Policies and Procedures. Plaintiff declined to stipulate to the proposed protective order. FCA did not obtain a court order permitting it to withhold the documents before the June 1 deadline.

Plaintiff filed this motion on June 2, 2026. FCA filed an Opposition on August 20, 2026, and Plaintiff filed a Reply on August 26, 2026.

Analysis

Section 871.26(b) establishes a mandatory initial-disclosure obligation. It provides that, within 60 days after the filing of the answer or other responsive pleading, the parties "shall, without awaiting a discovery request," provide the disclosures and documents identified in the statute.

Subdivision (h) then specifies the documents that a manufacturer must produce, including the documents identified in subdivisions (h)(12) and (h)(15). (Code Civ. Proc., § 871.26, subds. (b), (h).)

There is no dispute that the documents identified in subdivisions (h)(12) and (h)(15) fall within the statutory disclosure scheme. Nor is there a dispute that Plaintiff made a pre-suit request for repurchase, thereby triggering subdivision (h)(15). FCA contends that it complied with section 871.26 by producing documents concerning the Subject Vehicle and that it was entitled to condition production of its warranty and Lemon Law policies and procedures upon Plaintiff's agreement to a protective order. The Court disagrees.

First, production of other documents does not satisfy FCA's obligation to produce the specific categories required by subdivisions (h)(12) and (h)(15). The statute does not limit the manufacturer's initial disclosure obligation to documents concerning the particular vehicle at issue. It expressly requires production of the enumerated categories of manufacturer documents.

Second, the Court need not decide the broader question whether a court may, in an appropriate case, enter a protective order concerning documents produced pursuant to section 871.26. The narrower question presented here is whether FCA could withhold documents that section 871.26(b) required it to produce within 60 days while conditioning their production upon Plaintiff's agreement to a stipulated protective order. It could not.

Section 871.26(b) expressly requires production "without awaiting a discovery request." The statutory disclosure therefore is not dependent upon a party first propounding a document demand or upon the responding party negotiating the terms on which the disclosure will occur. FCA knew by April 1, 2026, that the statutory disclosures were due within 60 days. Rather than produce the disputed documents by the statutory deadline, FCA proposed a protective order two business days before the deadline and, after Plaintiff declined to stipulate, did not seek timely judicial relief permitting it to withhold the documents.

Whatever authority a court may have in an appropriate case to protect legitimately confidential or commercially sensitive information, that authority does not give a party the unilateral ability to suspend a mandatory statutory disclosure deadline while it seeks the opposing party's agreement to confidentiality restrictions. FCA was required to make the statutory disclosure by the June 1 deadline.

The Court therefore declines to find that section 871.26 categorically prohibits protective orders. Nor does the Court decide whether FCA could, upon a proper showing, seek narrowly tailored protection for particular confidential information after complying with its statutory disclosure obligation. The Court holds only that FCA was not entitled to withhold the required documents pending Plaintiff's agreement to a stipulated protective order.

FCA also has not demonstrated good cause for its failure to comply with section 871.26. FCA's declaration asserts generally that the documents contain proprietary business practices and commercially sensitive information. On the present record, however, FCA does not identify with sufficient specificity the information for which protection is sought, explain how

disclosure would cause concrete competitive harm, or otherwise establish why it was entitled to withhold the documents altogether during the statutory disclosure period.

The Court is mindful that section 871.26 is a relatively recent statutory scheme and that trial courts have reached differing conclusions concerning the availability and timing of protective orders for documents produced under the statute. That disagreement does not alter the result here. The Court is not holding that all documents produced under section 871.26 are necessarily unprotected from disclosure outside the litigation. The Court holds that Defendant could not unilaterally condition the statutorily mandated initial production upon Plaintiff's agreement to a protective order and then rely upon Plaintiff's refusal to stipulate as justification for noncompliance.

Sanctions

Plaintiff also requests the \$2,500 sanction prescribed by section 871.26, subdivision (j)(1).

Subdivision (j)(1) provides that, "[u]nless the party failing to comply with this section shows good cause," the court shall impose a \$2,500 sanction against the defense attorney for failure to comply with the document-production requirements of subdivision (b). (Code Civ. Proc., § 871.26, subd. (j)(1).)

FCA failed to produce the documents required by subdivisions (h)(12) and (h)(15) within the statutory period. FCA has not established good cause for that failure. Its decision to condition production upon Plaintiff's agreement to a proposed protective order does not establish good cause for noncompliance, particularly where FCA did not seek timely judicial relief before the statutory deadline.

Accordingly, the \$2,500 sanction is mandatory.

Disposition

Plaintiff's Motion to Enforce Code of Civil Procedure section 871.26 is GRANTED.

The Court declines at this time to determine whether any particular document or portion thereof may be subject to a properly supported protective order. Nothing in this ruling precludes FCA from seeking narrowly tailored protective relief concerning particular information upon a proper showing of good cause.

Plaintiff's request for monetary sanctions is GRANTED. Defense counsel for Defendant FCA US LLC shall pay \$2,500 in monetary sanctions to Plaintiff within 15 days of service of the Court's order, pursuant to Code of Civil Procedure section 871.26, subdivision (j)(1).

Plaintiff to prepare the final order, accompanied by the necessary Forms EFS-020, within 7 days of the date of the hearing.